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Case Number: 25PSCV03703 Hearing Date: August 19, 2026 Dept: 6

CASE

NAME: Sergios

Machado v. Ford Motor Company, et al.

1. Defendant

Ford Motor Company's Motion to Compel Plaintiff's Compliance with California Code of Civil Procedure § 871.26(b), § 871.26(f), and § 871.26(g) to Serve Code-Compliant Initial Disclosures and Document Production and Request for Sanctions in the Amount of \$1,500.00 Pursuant to Code of Civil Procedure § 871.26(j); and

2. Defendant

Ford Motor Company's Motion to Compel Compliance with California Code of Civil Procedure § 871.26(c) to Conduct Plaintiff's Initial Deposition and Request for Sanctions in the Amount of \$1,500.00 Pursuant to Code of Civil Procedure § 871.26(j)

TENTATIVE

RULING

The

Court GRANTS Defendant

Ford Motor Company's Motion to Compel Plaintiff's Compliance with California Code of Civil Procedure § 871.26(b), § 871.26(f), and § 871.26(g) to Serve Code-Compliant Initial Disclosures and Document Production and DENIES Defendant's request for sanctions. Plaintiff must locate and provide to Defendant Ford Motor Company's counsel the documents responsive to Code of Civil Procedure section 871.26, subdivisions (f)(3) and

(f)(4), along with code-compliant further responses. Plaintiff must also provide code-compliant further responses regarding Code of Civil Procedure section 871.26, subdivisions (g)(7), (g)(8), and (g)(9). If Plaintiff does not have or is otherwise unable to locate the required documents, Plaintiff must specify the reasons Plaintiff does not have or is unable to locate the required documents and, to the extent possible, provide the names and addresses of those who are or may be in possession, custody, or control of the required documents. Plaintiff must provide the foregoing responsive documents and further responses within 20 business days of this ruling.

The

Court GRANTS Defendant

Ford Motor Company's Motion to Compel Compliance with California Code of Civil Procedure § 871.26(c) to Conduct Plaintiff's Initial Deposition and DENIES Defendant's Request for Sanctions. Plaintiff must appear for initial deposition within 20 business days of the Court's ruling.

Defendant Ford Motor Company is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lemon law case. On October 14, 2025, plaintiff Sergios Machado (Plaintiff) filed this action against defendants Ford Motor Company (Manufacturer), Performance Ford (Dealership) (collectively, Defendants) and Does 1 through 10, alleging causes of action for violation of subdivision (d) of Civil Code section 1793.2, violation of subdivision (b) of Civil Code section 1793.2, violation of subdivision (a)(3) of Civil Code section 1793.2, breach of the implied warranty of merchantability, negligent repair, and fraudulent inducement – concealment. On November 17, 2025, Defendants answered the Complaint. On January 27, 2026, the Court granted Manufacturer's Motion for Judgment on the Pleadings as to the Sixth Cause of Action for fraudulent inducement – concealment without leave to amend.

On June 18, 2026, Manufacturer moved to compel initial disclosures and initial deposition from Plaintiff. On August 6, 2026, Plaintiff opposed both Motions. On August 12, 2026, Manufacturer replied to both Oppositions.

LEGAL

STANDARD

(b)

Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).

(c) Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents:

(1)

The plaintiff.

(2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf. This deposition shall be limited to the topics listed in subdivision (i).

(Code Civ. Proc., § 871.26, subds. (b)-(c).)

DISCUSSION

Meet and Confer – Initial Disclosures

Although Code of Civil Procedure section 871.26 does not contain a meet and confer requirement, this Court requests parties to meet and confer in person, by telephone, or by videoconference before filing a discovery motion. (See Code Civ Proc., § 871.26; Dept. 6 Courtroom Information, p. 3 of pdf.) Manufacturer did not meet and confer by any of these methods before filing this Motion. (Salinas Decl., ¶¶ 5-12.) The Court admonishes Manufacturer to comply with this Court's motion filing requirements going forward.

Summary

of Arguments – Initial Disclosures

Manufacturer

moves to compel Plaintiff to serve code-compliant initial disclosures and produce documents under Code of Civil Procedure section 871.26, subdivisions (b), (f), and (g), and requests a \$1,500.00 sanction against Plaintiff's counsel under subdivision (j)(1). Manufacturer contends that although Plaintiff served initial disclosures on January 20, 2026, they were untimely and deficient, and that Plaintiff produced none of the documents mandated by subdivision (f). Manufacturer argues that Plaintiff improperly attempted to shift his production burden by responding that Manufacturer could obtain the mandated documents through its dealer portal and related sources. Manufacturer asserts it has been prejudiced because it cannot investigate or defend against the claims or prepare for the code-mandated deposition and mediation. Manufacturer maintains that the \$1,500 sanction is mandatory under subdivision (j)(1) given counsel's failure to comply and to respond to Manufacturer's meet-and-confer efforts.

In opposition, Plaintiff argues that he substantially complied by serving initial disclosures on January 20, 2026 that answered every item of information required by subdivision (g) and responded to every document category listed in subdivision (f). As to the sales agreement, registration, and repair orders, Plaintiff states that he is not in possession of those records and that they are within the possession, custody, or control of Manufacturer and its dealer, obtainable through Manufacturer's dealer portal and the dealer file. Plaintiff notes that the repairing dealership he identified, Performance Ford in West Covina, is itself a named defendant represented by the same counsel, so Manufacturer is asking the Court to order production of documents that Manufacturer and its codefendant already hold. Plaintiff argues that the subdivision (j)(1) sanction does not issue automatically because it applies only absent a showing of good cause, and that good cause exists here, as counsel served the disclosures, engaged in Manufacturer's meet-and-confer correspondence, and continued to litigate while Plaintiff became unreachable, prompting counsel to file a motion to be relieved. Plaintiff requests that, if the Court orders any further compliance, it set a reasonable deadline measured from its order rather than impose sanctions on counsel.

In reply, Manufacturer contends that the disclosures remain deficient and that the Opposition concedes Plaintiff is not in possession of the core documents forming the basis of his claims. Manufacturer argues that Plaintiff cannot

satisfy his statutory obligations by directing Manufacturer to locate documents elsewhere, because subdivision (f) requires the plaintiff, not the manufacturer, to produce them, adding that Manufacturer was not a party to the sale and that the complaint does not identify the seller. Manufacturer further contends it is concerning that the sales agreement, which it characterizes as the document conferring standing, is not in Plaintiff's or counsel's possession. Manufacturer disputes that good cause exists, asserting that counsel ignored Manufacturer's meet-and-confer efforts beginning February 9, 2026, before the claimed spring 2026 loss of contact with the client, and never advised Manufacturer that Plaintiff could not be reached. Manufacturer renews its request that the Court compel compliance within ten days of its order and impose the \$1,500 sanction against Plaintiff's counsel under subdivision (j)(1).

Analysis

– Initial Disclosures

The

Court finds Manufacturer's arguments generally persuasive. While the Court agrees with Manufacturer that it is problematic Plaintiff would file this action without having a copy of the sales agreement, that does not render Plaintiff's response inadequate. Thus, to the extent Plaintiff stated he does not have the requested documents, there is nothing to compel. The Court also finds that Plaintiff's production of the initial responses four days late on January 20, 2026 de minimis.

But,

the Court does find Plaintiff's responses regarding the documents listed under Code of Civil Procedure section 871.26, subdivisions (3) and (4), in which Plaintiff attempts to shift the burden to Manufacturer evasive and generally inadequate. (Salinas Decl., Ex. A; Code Civ. Proc., § 871.26, subds. (f)(3)-(f)(4).) Code of Civil Procedure section 871.26, subdivision (f), clearly states that the burden of producing the documents listed thereunder falls on Plaintiff. (Id., § 871.26, subd. (f).)

The

Court also finds Plaintiff's responses to Code of Civil Procedure section 871.26, subdivisions (g)(7) through (g)(9), evasive and generally inadequate. The burden of providing this information falls on Plaintiff. Plaintiff cannot try to shift the burden to Manufacturer or just claim Plaintiff is still searching

for this information. The Court also notes that subdivision (g)(9) requires only information, not responsive documents. (See Salinas Decl., Ex. A; Code Civ. Proc., § 871.26, subds. (g)(7)-(g)(9).)

The

Court therefore GRANTS Manufacturer's Motion to Compel Plaintiff's Initial Disclosures. Plaintiff must locate and provide to Manufacturer's counsel the documents responsive to Code of Civil Procedure section 871.26, subdivisions (f)(3) and (f)(4), along with code-compliant further responses. Plaintiff must also provide code-compliant further responses regarding Code of Civil Procedure section 871.26, subdivisions (g)(7), (g)(8), and (g)(9). If Plaintiff does not have or is otherwise unable to locate the required documents, Plaintiff must specify the reasons Plaintiff does not have or is unable to locate the required documents and, to the extent possible, provide the names and addresses of those who are or may be in possession, custody, or control of the required documents. Plaintiff must provide the foregoing responsive documents and further responses within 20 business days of this ruling.

As

for monetary sanctions, the Court finds Plaintiff's counsel has demonstrated good cause for the failure to provide fully code-compliant responses. (Code Civ. Proc., § 871.26, subd. (j).) Plaintiff's counsel provided initial disclosures that attempted to comply with the statutory requirements. Plaintiff's counsel indicates there is and has been a communication breakdown with Plaintiff. (Smith Decl., ¶ 8.) Plaintiff's counsel has also filed another motion to be relieved as counsel; the first of which was denied without prejudice on July 20, 2026. The Court therefore DENIES Manufacturer's request for monetary sanctions.

Meet

and Confer – Initial Deposition

Although Code of Civil Procedure section 871.26 does not contain a meet and confer requirement, this Court requests parties to meet and confer in person, by telephone, or by videoconference before filing a discovery motion. (See Code Civ Proc., § 871.26; Dept. 6 Courtroom Information, p. 3 of pdf.) Manufacturer did not meet and confer by any of these methods before filing this Motion. (Salinas Decl., ¶¶ 5-12.) The Court admonishes Manufacturer to comply with this Court's motion filing requirements going forward.

Summary of Arguments – Initial Deposition

Manufacturer

moves under Code of Civil Procedure section 871.26, subdivision (c), to compel Plaintiff to appear for his initial deposition and requests a \$1,500 sanction against Plaintiff's counsel under section 871.26, subdivision (j)(2). Manufacturer contends that Assembly Bill 1755, effective January 1, 2025, requires the parties to conduct initial depositions within 120 days after the answer is filed, and that Plaintiff has failed to appear or provide a single available date. Manufacturer states that it noticed Plaintiff's deposition for February 5, 2026, received an objection, and thereafter made no fewer than seven attempts by email and telephone to obtain alternate dates, all without response. Manufacturer argues it has been prejudiced because it lacks the information needed to defend the action and prepare for the Code-mandated mediation. Manufacturer asserts that the sanction is mandatory where Plaintiff's counsel ignored its meet-and-confer efforts and delayed the expedited process the Legislature intended.

In

opposition, Plaintiff argues that he never refused to be deposed and that the dispute is one of scheduling rather than noncompliance. Plaintiff contends Manufacturer unilaterally set the deposition for a single date, that Plaintiff timely served a written objection stating he was unavailable on that date, and that he agreed to meet and confer to reschedule on a mutually convenient date. Plaintiff states the deposition has not been reset because he has become unreachable to his own counsel despite repeated efforts by telephone, email, and mail to obtain his availability and cooperation. Plaintiff argues the \$1,500 sanction is not automatic because subdivision (j) applies only "unless the party failing to comply with this section shows good cause," and that good cause exists where counsel timely objected, sought to reschedule, and continued to litigate while the client stopped communicating. Plaintiff requests that the motion be denied, that no sanction issue, and that, if the deposition is ordered, the court set a reasonable date measured from its order rather than the ten days Manufacturer proposes.

In

reply, Manufacturer argues that Plaintiff's position is circular because the opposition concedes plaintiff has not appeared for his deposition as mandated

by section 871.26, subdivision (c). Manufacturer contends the Opposition fails to show good cause, noting that Manufacturer has sought to schedule the deposition since November 17, 2025, and that Plaintiff's counsel ignored all of Manufacturer's requests rather than advising that the client was unreachable. Manufacturer emphasizes that, even accepting counsel's inability to reach Plaintiff beginning in "Spring of 2026," counsel disregarded Manufacturer's multiple earlier meet-and-confer attempts and later failed to respond to requests for an Informal Discovery Conference. Manufacturer maintains it has been severely prejudiced and that the 120-day deadline expired on March 17, 2026. Manufacturer reiterates that both an order compelling the deposition within ten days and the \$1,500 sanction against Plaintiff's counsel are mandated by sections 871.26, subdivision (c), and 871.26, subdivision (j)(2).

Analysis

– Initial Deposition

The

Court finds Manufacturer's Motion to Compel Plaintiff's Initial Deposition well taken. Manufacturer answered the Complaint on November 17, 2025, which triggered the 120-day deadline for the parties to conduct initial depositions. (Answers (11/17/25); Code Civ. Proc., § 871.26, subd. (c).) Plaintiff concedes not having appeared for deposition within the mandatory 120-day deadline. (See generally, Opp.) Manufacturer attempted numerous times throughout the 120-day period to depose Plaintiff, but to no avail. (Salinas Decl., ¶¶ 4-9.) Plaintiff's counsel's argument that there has been a communication breakdown with Plaintiff since "Spring of 2026" does not excuse the obligation to appear for deposition. (Smith Decl., ¶¶ 9-10.) Plaintiff had until March 17, 2026, to appear for deposition. (Code Civ. Proc., § 871.26, subd. (c).) The Court therefore GRANTS the Motion. Plaintiff must appear for initial deposition within 20 business days of the Court's ruling.

However,

the Court DENIES Manufacturer's request for monetary sanctions. As noted above, the Court finds that good cause exists not to impose sanctions.

CONCLUSION

The

Court GRANTS Defendant

Ford Motor Company's Motion to Compel Plaintiff's Compliance with California Code of Civil Procedure § 871.26(b), § 871.26(f), and § 871.26(g) to Serve Code-Compliant Initial Disclosures and Document Production and DENIES Defendant's Request for Sanctions. Plaintiff must locate and provide to Defendant Ford Motor Company's counsel the documents responsive to Code of Civil Procedure section 871.26, subdivisions (f)(3) and (f)(4), along with code-compliant further responses. Plaintiff must also provide code-compliant further responses regarding Code of Civil Procedure section 871.26, subdivisions (g)(7), (g)(8), and (g)(9). If Plaintiff does not have or is otherwise unable to locate the required documents, Plaintiff must specify the reasons Plaintiff does not have or is unable to locate the required documents and, to the extent possible, provide the names and addresses of those who are or may be in possession, custody, or control of the required documents. Plaintiff must provide the foregoing responsive documents and further responses within 20 business days of this ruling.

The Court GRANTS Defendant Ford Motor Company's Motion to Compel Compliance with California Code of Civil Procedure § 871.26(c) to Conduct Plaintiff's Initial Deposition and DENIES Defendant's Request for Sanctions. Plaintiff must appear for initial deposition within 20 business days of the Court's ruling.

Defendant Ford Motor Company is ordered to give notice of the Court's ruling within five calendar days of this order.